



SINGLE SOURCE JUSTIFICATION NOT EXCEEDING THE SIMPLIFIED ACQUISITION THRESHOLD

SECTION 1: IDENTIFICATION OF THE AGENCY AND THE CONTRACTING ACTIVITY

Department of State Contracting Activity	☒ Overseas post-Kuwait
Requiring Activity	U.S. Embassy Kuwait – U.S. Customs and Border Protection (CBP) Interpretation services for two Consecutive interpreters English-Arabic/ Arabic English

SECTION 2: NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

Approval is requested to award on a sole source basis to AALAA Translation Co. W.L.L, located in Murgab, Al Shahed Tower, Abdullah Mubarak St, Kuwait, for the services described in Section 3 on behalf of the Requiring Activity.

SECTION 3: DESCRIPTION OF SUPPLIES/SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS

The requirement is to provide English to Arabic and Arabic to English interpretation services to a Kuwait General Administration of Customs' (KGAC) delegation attending training in New York, NY, from May 5, 2025, to May 9, 2025.

Estimated Value: The estimated value for the entire period of performance, including the base (5) days at (8) hours per day, is \$17,500.

Duration: The services are required for a total of (5) days, from May 5, 2025, to May 9, 2025.

Daily Hours: The interpreter will be needed for (8) hours each day.

Option for Additional Hours: In the event that services are required beyond the normal 8-hour period, they will be charged at a rate of KWD61.150 per additional hour.

Estimated total award including option is not to exceed US\$20,000.00. The amount mentioned in the quotation covers all expenses such as, translators fees, accommodation, transportation and per diem.

The two translators will arrive one day before the event (4th May) and leave after the event is over (10th May)

Description of services required: Interpretation services for two Consecutive interpreters to provide English to Arabic and Arabic to English interpretation services in both a classroom and field setting. This will allow the Office of CBP to accomplish a key tenet from the Memorandum of Understanding between CBP and KGAC which requires CBP to provide training to KGAC in the United States. In this instance the training covers techniques for conducting customs inspections and narcotics enforcement activities in an airport environment for KGAC inspectors and assistant supervisors.



SECTION 4: IDENTIFICATION OF THE STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

In accordance with Federal Acquisition Regulation (FAR) 13.106-1(b)(1), the Contracting Officer has deemed only one source reasonably available based on the following:

☒ Urgency

SECTION 5: DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED

This request is urgent due to the timing of the training. This training is only available from May 5, 2025, to May 9, 2025. Any delay will result in the training being canceled for 2025, and the next iteration not being available until 2026. In addition, Kuwait would lose the opportunity to compete for the training in 2026 due to the cancellation. This would cause CBP to be unable to violate one of the agreed-upon tenets of the MOU, causing serious harm to the relationship between CBP and KGAC.

CBP was unable to submit this request any earlier because the MOU itself was not signed until a week prior to the request being submitted. In addition, the Kuwaiti inspectors had not been identified until a week prior to this request being submitted. Further delaying the submission was the need to wait for KGAC to provide the decision memo authorizing the training to the Ministry of Foreign Affairs, which allowed MFA to provide a diplomatic note to the U.S. Embassy in Kuwait officially requesting the visas for the travel. Once the training was officially approved, the request was immediately submitted.

In addition to the urgency of the situation, Aalaa Translation Company is uniquely qualified to provide these services to U.S. Customs and Border Protection based upon the following:

- a. They have knowledge of a specialized vocabulary specific to customs terminology. Given the specific nature of customs work, ordinary interpretation services do not work because the interpreters don't know the Arabic or English word for the more specific or technical terms. Having this specialized vocabulary of customs terms allows the course materials to be presented in a seamless manner without multiple delays while the interpreter attempts to figure out the appropriate translation or phrasing. CBP has utilized the services of this company multiple times.
- b. CBP used interpreters from the Department of State in Washington, D.C. to provide interpretation services for a delegation that traveled to the United States in May 2024, however they did not provide adequate interpretation. The primary reason was the lack of the specialized vocabulary that Aalaa Translation Company has. In addition, the interpreters did not speak the same dialect as the Kuwaitis, so much of the



necessary interpretation was lost. Reports from Arabic speakers in the audience confirmed that the interpreters did not know how to translate phrases used by the instructors, that they often used the wrong word for non-technical jargon, and that they summarized frequently without completely translating entire phrases, to the point that the interpreters were missing large portions of the course materials. Finally, it was reported that the interpreters acted unprofessionally, getting frustrated during interaction between the delegation and the instructors, often telling the members of the delegation to be quiet so they could finish interpreting. This negatively impacted on the training and the delegation reportedly requested that the Department of State interpreters be replaced. All of this can be avoided by using Aalaa Translation Company.

c. Due to their skill level, Aalaa Translation Company interpreters have been employed in the past to provide simultaneous interpretation for high level Kuwaiti VIPs, at government functions, and at strategic meetings and negotiations, providing correct interpretation of strategies and tactics on behalf of Kuwaiti and foreign government officials. Additionally, they have access to interpreters who do not live in Kuwait, so they are able to provide these services when interpretation is not available through in-country means.

d. Aalaa Translation Company's estimate, while over \$10,000, is still \$11,000 less than the cost of using interpreters from the Department of State.

SECTION 6. DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT IS FAIR AND REASONABLE

The Contracting Officer has determined that the anticipated cost of KWD 5,350 to the U.S. Government for the services described in this Single Source Justification is fair and reasonable.

This determination is based on a comparison with historical pricing data, specifically a similar contract awarded in 2024 with a total cost of KWD 5,365. The minimal variance in price indicates consistency with market expectations and reflects no material change in scope or complexity. Therefore, the proposed cost is considered appropriate and justified.

Furthermore, market research supports the reasonableness of this pricing. An approximate breakdown of itemized charges by category is provided below for reference:

Description	Cost	No. of hours	No. of Days	Per traveler	Total amount
Hourly rate	\$90.00	8	5	2	\$7,200.00
Ticket	\$1,800.00			2	\$3,600.00
Visa	\$150.00			2	\$300.00
Per diem	\$183.00		5	2	\$1,830.00
M&IE Total	\$69.00		5	2	\$690.00
Insurance	\$1,000.00			2	\$2,000.00



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Transportation	\$100.00		5	2	\$1,000.00
1st and last day of travel	\$52.00			2	\$104.00
Estimated total value					\$16,724.00

By signing the justification, the Contracting Officer makes a determination that the price to the Government is anticipated to be fair and reasonable.



SECTION 7. CERTIFICATIONS

All reviews and approvals should be completed in the order listed unless otherwise authorized or required.

REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Requirements Cognizance:

SIGNATURE:

Todd G King

April 17, 2025 _____

Todd King
CBP Advisor
Department of Homeland Security
Customs and Border Protection

CONTRACTING OFFICER CERTIFICATION

I certify that this submission is accurate to the best of my knowledge, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

SIGNATURE:

Name

Date

Contracting Officer
Office Symbol or Post